

The Global Pact for the Environment: At the crossroads of human rights and the environment

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The Global Pact for the Environment has the potential to be a milestone in the rapidly developing relationship of human rights and the environment. Most importantly, the first article recognizes the right of every person 'to live in an ecologically sound environment adequate for their health, well-being, dignity, culture and fulfilment'. This article provides context for the proposal to recognize the human right to a healthy environment. It reviews previous efforts to recognize the human right to a healthy environment at the national and international levels; explains how other human rights, such as rights to life and health, have been construed to apply to environmental issues; and describes how recognition of the right in the Global Pact, or in another instrument such as a resolution of the United Nations General Assembly, would contribute to the growing field of environmental human rights law.

1 | INTRODUCTION

International law has long treated human rights law and international environmental law as separate fields. However, the problems they address significantly overlap and the fields increasingly influence one another. In some respects, they are even beginning to merge. The Global Pact for the Environment has the potential to be a milestone in this rapidly developing relationship.¹

As its name suggests, the Global Pact is quite ambitious; it aspires to be nothing less than a new international environmental constitution. The Pact was drafted by environmental law experts from different countries, working under the auspices of the environment commission of the *Club des Juristes*, a French legal think tank. Laurent Fabius, the president of the French *Conseil Constitutionnel*, chaired the meeting of the experts in June 2017 at which the text was finalized.²

The most obvious precursor of the Global Pact is the 1992 Rio Declaration on Environment and Development, many of whose principles the Pact repeats in similar or even identical language.³ However,

as Yann Aguila and Jorge Viñuales explain, the Pact goes beyond the Rio Declaration in significant respects, including by codifying the principles in the form of a legally binding instrument, by including some new principles, and by providing for a committee of experts to monitor compliance and facilitate implementation of the Pact.⁴

In the fall of 2017, the French government promoted the Pact in several forums, including a high-level side event at the United Nations (UN) General Assembly in New York in September. In May 2018, the General Assembly adopted a resolution entitled 'Towards a Global Pact for the Environment', which requested the Secretary-General to submit a report on gaps in international environmental law and environment-related instruments, and established an open-ended working group to consider the report and discuss possible options to address such gaps, 'and, if deemed necessary, the scope, parameters and feasibility of an international instrument, with a view to making recommendations, which may include the convening of an intergovernmental conference to adopt an international instrument, to the Assembly during the first half of 2019'.⁵

The present article does not attempt to predict what will emerge from this process. The final result, if any, may not look much like the

¹Draft Global Pact for the Environment' (24 June 2017) <www.pactenvironment.org>.

²As the French Minister of Foreign Affairs, Fabius presided over the 21st Conference of the Parties to the United Nations Framework Convention on Climate Change, which adopted the Paris Agreement in December 2015.

³Rio Declaration on Environment and Development in 'Report of the United Nations Conference on Environment and Development' UN Doc A/CONF.151/26 (vol I) (12 August 1992) Annex (Rio Declaration).

⁴Y Aguila and J Viñuales, 'A Global Pact for the Environment: Conceptual Foundations' (2019) 28 *Review of European, Comparative and International Environmental Law* 3.

⁵UNGA 'Towards a Global Pact for the Environment' UN Doc A/RES/72/277 (10 May 2018).

Global Pact. Even if it does resemble the Pact, it may not attract the support necessary to meet the goal of establishing a new framework for international environmental protection. Instead, this article highlights one aspect of the draft Global Pact that is noteworthy regardless of the outcome of the process: the way that this proposal for a new international environmental constitution reflects and supports the growing interdependence of human rights norms and environmental protection.

Although several provisions of the Pact recall human rights principles, the most important in this respect is the very first article, which would recognize for the first time in a global treaty the right of every person 'to live in an ecologically sound environment adequate for their health, well-being, dignity, culture and fulfilment'.⁶ This article places this provision in context and explains its potential significance. Specifically, it reviews the previous efforts to recognize the human right to a healthy environment at the national and international levels; describes how other human rights, such as rights to life and health, have been construed to apply to environmental issues; and explains how recognition of the right to a healthy environment in a new international instrument would contribute to the evolution of environmental human rights law.⁷

2 | RECOGNITION OF THE RIGHT TO A HEALTHY ENVIRONMENT

Despite repeated efforts, the UN has never explicitly recognized the human right to a healthy environment in a global instrument. The seminal human rights texts – the Universal Declaration of Human Rights and the two International Covenants on human rights – do not include the right, almost certainly because they were adopted by the UN General Assembly in 1948 and 1966 respectively, before the modern environmental movement began. Early in that movement, advocates began to argue that the importance of the environment to human wellbeing required recognition of the human right to a healthy environment. They nearly achieved their goal in 1972, at the first UN environmental conference. The first principle of the Stockholm Declaration adopted by the conference states: 'man has the fundamental right to freedom, equality and adequate conditions of life, in an environment of a quality that permits a life of dignity and well-being, and he bears a solemn responsibility to protect and improve the environment for present and future generations'.⁸

However, the UN has never again come so close to explicit recognition of the right. For example, the 1987 report of the World Commission on Environment and Development, which brought forward the concept of sustainable development, includes legal principles drafted by an experts group, the first of which declares: 'all human beings have the fundamental right to an environment adequate for their health and well-being'.⁹ Rather than adopt this language, the 1992 Rio Declaration states only: 'Human beings are at the centre of concerns for sustainable development. They are entitled to a healthy and productive life in harmony with nature'.¹⁰

In the UN human rights bodies, the most sustained attention to the right came in the early 1990s. In 1990, the Sub-commission on Prevention of Discrimination and Protection of Minorities, a body of independent experts reporting to the Human Rights Commission, the principal UN intergovernmental human rights body at the time, appointed Fatma Zohra Ksentini as its special rapporteur on human rights and the environment. Her final report, presented in 1994, included draft principles on human rights and the environment, which state that everyone has 'the right to a secure, healthy and ecologically sound environment' and list a number of related rights, including rights to freedom from pollution, to protection and preservation of the air, soil, water, sea-ice, flora and fauna, to safe and healthy food and water, and to information concerning the environment.¹¹ The Human Rights Commission considered the report, but it did not adopt or endorse the draft principles or appoint a special rapporteur itself.

In contrast to the lack of action at the UN, many regional agreements and national laws have incorporated the right to a healthy environment. The first international agreement to recognize the right was the African Charter on Human and Peoples' Rights, adopted in 1981, which states that 'all peoples shall have the right to a general satisfactory environment favourable to their development'.¹² Seven years later, the San Salvador Protocol to the American Convention on Human Rights became the first treaty to characterize the right as an individual rather than a collective right, stating simply that 'everyone shall have the right to live in a healthy environment'.¹³ In 2003, the African Union adopted the Maputo Protocol to the African Charter, which states that women shall have 'the right to live in a healthy and sustainable environment' and 'the right to fully enjoy their right to sustainable development'.¹⁴ The Arab Charter on

⁶Draft Global Pact for the Environment (n 1) art 1.

⁷The intersection of human rights and the environment has received an immense amount of scholarly attention. Although there are too many important works to list them all here, useful introductions include D Anton and D Shelton, *Environmental Protection and Human Rights* (Cambridge University Press 2011); B Boer (ed), *Environmental Law Dimensions of Human Rights* (Oxford University Press 2015); A Grear and LJ Kotzé (eds), *Research Handbook on Human Rights and the Environment* (Edward Elgar 2015); J Knox and R Pejan (eds), *The Human Right to a Healthy Environment* (Cambridge University Press 2018). For overviews of environmental human rights at the national level, see D Boyd, *The Environmental Rights Revolution* (University of British Columbia Press 2012); J May and E Daly, *Global Environmental Constitutionalism* (Cambridge University Press 2015).

⁸Declaration of the United Nations Conference on the Human Environment in 'Report of the United Nations Conference on the Human Environment' UN Doc A/CONF.48/14/Rev.1 (1973) Principle 1.

⁹Experts Group on Environmental Law of the World Commission on Environment and Development, 'Environmental Protection and Sustainable Development: Legal Principles and Recommendations' (1987).

¹⁰Rio Declaration (n 3) Principle 1.

¹¹UN Economic and Social Council 'Human Rights and the Environment' UN Doc E/CN.4/Sub.2/1994/9 (6 July 1994) Annex I.

¹²African Charter on Human and Peoples' Rights (adopted 27 June 1981, entered into force 21 October 1986) 1520 UNTS 217 art 24.

¹³Additional Protocol to the American Convention on Human Rights in the Area of Economic, Social and Cultural Rights (adopted 17 November 1988, entered into force 16 November 1999) 28 ILM 156 art 11(1).

¹⁴Protocol to the African Charter on Human and Peoples' Rights on the Rights of Women in Africa (adopted 11 July 2003, entered into force 25 November 2005) <http://www.achpr.org/files/instruments/women-protocol/achpr_instr_proto_women_eng.pdf> arts 18 and 19.

Human Rights of 2004 includes the right to a healthy environment as part of the right to an adequate standard of living that ensures well-being and a decent life, as does the Human Rights Declaration adopted by the Association of Southeast Asian Nations in 2012.¹⁵

Alone among the regional human rights systems, the European Convention on Human Rights (setting out civil and political rights) and the European Social Charter (identifying economic, social and cultural rights) do not include the right to a healthy environment. However, the European Committee of Social Rights, which has the non-binding authority to oversee compliance with the Social Charter, has interpreted the right to protection of health in Article 11 of the Charter to include an implicit right to a healthy environment.¹⁶

Although they are not usually considered human rights agreements, two regional agreements on procedural rights of access to information, public participation and remedies in environmental matters also refer to the human right to a healthy environment. The Aarhus Convention on Access to Information, Public Participation in Decision-making and Access to Justice in Environmental Matters, adopted in 1998 under the auspices of the UN Economic Commission for Europe, states as its objective that the parties shall guarantee these rights of access '[i]n order to contribute to the protection of the right of every person of present and future generations to live in an environment adequate to his or her health and well-being'.¹⁷ Similarly, the Regional Agreement on Access to Information, Public Participation and Justice in Environmental Matters in Latin America and the Caribbean (known as the Escazú Agreement), which opened for signature in 2018, states that one of its objectives is 'contributing to the protection of the right of every person of present and future generations to live in a healthy environment and to sustainable development'.¹⁸ It goes further than the Aarhus Convention by also requiring that each of its parties 'guarantee the right of every person to live in a healthy environment'.¹⁹

At the national level, Portugal became the first country to adopt a constitutional 'right to a healthy and ecologically balanced human environment' in 1976. The number of countries explicitly recognizing the right in national constitutions has grown steadily and is now at least 100.²⁰ About two-thirds of these constitutions refer to a healthy environment; alternative formulations include rights to a

clean, safe, favourable, wholesome or ecologically balanced environment. Many other States have enacted legislation that refers to the right to a healthy environment. Some States, including India and Pakistan, have interpreted other rights, such as the right to life, to incorporate the right to a healthy environment.²¹

In all, more than 150 States have recognized the right through regional agreements, national constitutions, or other national laws or court decisions. The right could thus be said to have achieved near-global support even in the absence of a global instrument explicitly recognizing it, although the remaining hold-outs include some powerful, populous countries, notably China, Japan and the United States, as well as Australia and Canada.

Although in some States the right may be merely aspirational or symbolic, the agencies and courts of many others regularly rely on the right to authorize or require stronger environmental measures.²² At the international level, however, regional tribunals and other bodies have only occasionally cited the right. Instead, as the next section explains, international human rights bodies have contributed to the growing body of environmental human rights law by applying more well-established human rights to environmental issues.

3 | INTERNATIONAL ENVIRONMENTAL HUMAN RIGHTS LAW

For nearly 25 years, international human rights bodies have 'greened' human rights law by holding that environmental harm implicates a very wide variety of human rights, including the rights to life, health and property. Through decisions and statements by regional human rights tribunals and commissions, UN human rights treaty bodies, special rapporteurs and others, human rights law has developed an environmental jurisprudence.

To examine and report on this growing field, the UN Human Rights Council, which replaced the Human Rights Commission in 2006, decided in 2012 to appoint an independent expert with a mandate to study the human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment.²³ Over much of the next two years, the independent expert conducted consultations around the world and, with the assistance of many lawyers and academics, researched the decisions and statements of human rights tribunals and other international bodies on environmental matters. Specifically, this 'mapping project' examined: (i) UN human rights bodies and mechanisms, including resolutions adopted by the General Assembly and Human Rights Council, and reports of special rapporteurs and other mandate-holders appointed by the Council; (ii) global human rights treaties, as interpreted by the treaty bodies given authority to oversee compliance with them; (iii) regional human

¹⁵Arab Charter on Human Rights (adopted 22 May 2004, entered into force 15 March 2008) 12 IHRR 893 art 38; Association of Southeast Asian Nations (ASEAN), 'ASEAN Human Rights Declaration' (18 November 2012) <https://www.asean.org/storage/images/ASEAN_RTK_2014/6_AHRD_Booklet.pdf> para 28(f).

¹⁶*Marangopoulos Foundation for Human Rights v Greece*, Complaint No 30/2005 (Eur. Soc. Comm. 2006) para 200; *International Federation for Human Rights (FIDH) v Greece*, Complaint No 72/2011 (Eur. Soc. Comm. 2013) para 49.

¹⁷Convention on Access to Information, Public Participation in Decision-making and Access to Justice in Environmental Matters (adopted 25 June 1998, entered into force 30 October 2001) 2161 UNTS 450 art 1.

¹⁸Regional Agreement on Access to Information, Public Participation and Justice in Environmental Matters in Latin America and the Caribbean (adopted 4 March 2018, not yet entered into force) <https://repositorio.cepal.org/bitstream/handle/11362/43583/1/S1800428_en.pdf> art 1.

¹⁹*ibid* art 4.

²⁰See D Boyd, 'Catalyst for Change: Evaluating Forty Years of Experience in Implementing the Right to a Healthy Environment' in Knox and Pejan (n 7) 17, 19–23 (listing countries).

²¹See, e.g., *M.C. Mehta v Union of India*, No AIR 1988 SC 1115; *Shehla Zia v WAPDA*, PLD 1994 SC 693 (Supreme Court of Pakistan 1994).

²²See Boyd (n 7); May and Daly (n 7).

²³Human Rights Council (HRC) 'Human Rights and the Environment' UN Doc A/HRC/RES/19/10 (19 April 2012). The present author was appointed in July 2012.

rights systems, including decisions of regional human rights courts and commissions; and (iv) international environmental instruments.

The independent expert published a series of 14 reports, each describing what one source or set of sources had said about environmental issues.²⁴ He summarized the conclusions of these reports to the Human Rights Council in an overall mapping report, published in December 2013 and presented to the Council in March 2014.²⁵

The sources reviewed overwhelmingly agreed that environmental harm threatens a vast range of human rights, including rights to life, health, property, home and family life, food, water, culture and self-determination.²⁶ They also agreed that States have obligations to protect human rights from interference from environmental harm. Despite differences in the language of the treaties and in the specific rights that the bodies were interpreting, the sources reached remarkably similar conclusions about the nature of these obligations. They stated that in order to protect against environmental harm, States have procedural obligations, including duties to assess environmental impacts and make environmental information public, to facilitate public participation in environmental decision making and to provide access to effective remedies.²⁷ States also have substantive duties to adopt and implement legal frameworks to protect against environmental harm, including by regulating corporations and other private actors.²⁸ Finally, they have duties to protect against discrimination in environmental law and policy, and to take additional steps to protect those who are at particular risk from environmental harm.²⁹

In 2015, the Council renewed the mandate for another three years, changed the title of the mandate-holder to 'special rapporteur', and requested that he promote and report on the realization of human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment, disseminate his findings, and identify challenges and obstacles to the full realization of such obligations.³⁰ In accordance with that charge, the special rapporteur sought, among other things, to develop guidance that clearly describes the human rights norms of special relevance to the environment.

To that end, and after consultation with governments, civil society organizations and other stakeholders, he prepared Framework Principles on Human Rights and the Environment, which he presented to the Council in March 2018.³¹ The 16 Framework Principles and

their accompanying commentary do not purport to create new obligations; rather, they provide a restatement of existing obligations of States under human rights law as they relate to the environment.³²

The Principles include specific procedural obligations, such as the duties of States to respect and protect the rights to freedom of expression, association and peaceful assembly in relation to environmental matters, provide for environmental education and public awareness, provide public access to environmental information, require prior assessment of the possible environmental and human rights impacts of proposed projects and policies, provide for and facilitate public participation in decision making related to the environment, and provide for access to effective remedies for violations of human rights and domestic laws relating to the environment.³³

The Principles also set out human rights obligations relating to substantive standards. Human rights bodies have made clear that while environmental standards should ideally be set and implemented at levels that would prevent all environmental harm from human sources, States do have discretion, in light of limited resources, to seek to achieve progressively the full realization of economic, social and cultural rights, including in the environmental context.³⁴ However, this discretion is not unlimited. For example, the establishment and implementation of environmental standards must always comply with obligations of non-discrimination, and there is a strong presumption against retrogressive measures. Other relevant factors include whether the standards take into account relevant international standards, such as those promulgated by the World Health Organization. In short, States must not strike an unjustifiable or unreasonable balance between environmental protection and other social goals.³⁵

Governments must comply with their legal standards once adopted, and monitor and effectively enforce compliance by corporations and other private actors. In accordance with the Guiding Principles on Business and Human Rights endorsed by the Human Rights Council in 2011, corporations also have the direct responsibility to respect human rights, which includes the responsibility to avoid causing or contributing to adverse human rights impacts through environmental harm and to address such impacts when they occur.³⁶

States also have obligations to cooperate with one another to address transboundary and global threats to human rights, such as climate change and the global loss of biological diversity. Again, once such cooperation has resulted in standards and commitments, such as those in multilateral environmental agreements, States have obligations under international law to comply with the standards and commitments in good faith.³⁷

States must ensure that their actions relating to the environment do not discriminate, and they must protect against environmental

²⁴The reports are available at <www.srenvironment.org> and <https://www.ohchr.org/EN/Issues/Environment/SREnvironment/Pages/MappingReport.aspx>.

²⁵Report of the Independent Expert on the Issue of Human Rights Obligations Relating to the Enjoyment of a Safe, Clean, Healthy and Sustainable Environment, John H. Knox' UN Doc A/HRC/25/53 (30 December 2013).

²⁶ibid paras 17–25.

²⁷ibid paras 29–43.

²⁸ibid paras 44–61.

²⁹ibid paras 69–78.

³⁰HRC 'Human Rights and the Environment' UN Doc A/HRC/RES/28/11 (7 April 2015).

³¹Framework Principles on Human Rights and the Environment in 'Report of the Special Rapporteur on the Issue of Human Rights Obligations Relating to the Enjoyment of a Safe, Clean, Healthy and Sustainable Environment' UN Doc A/HRC/37/59 (24 January 2018) Annex (Framework Principles).

³²The sources for the Framework Principles are available at <https://www.ohchr.org/EN/Issues/Environment/SREnvironment/Pages/FrameworkPrinciplesReport.aspx>.

³³Framework Principles (n 31) Principles 5–10, paras 12–30.

³⁴See International Covenant on Economic, Social and Cultural Rights (adopted 16 December 1966, entered into force 3 January 1976) 999 UNTS 3 art 2(1).

³⁵Framework Principles (n 31) Principle 11, paras 31–33.

³⁶ibid Principle 12, paras 34 and 35.

³⁷ibid Principle 13, paras 36–39.

harm that results from or contributes to discrimination.³⁸ States are also obligated to take special care to respect, protect and fulfil the rights of those who are most at risk from environmental harm, including indigenous peoples.³⁹

In presenting the Framework Principles to the Council, the special rapporteur made clear that:

*[w]hile many of the obligations described in the framework principles and commentary are based directly on treaties or binding decisions from human rights tribunals, others draw on statements of human rights bodies that have the authority to interpret human rights law but not necessarily to issue binding decisions. The coherence of these interpretations, however, is strong evidence of the converging trends towards greater uniformity and certainty in the understanding of human rights obligations relating to the environment. These trends are further supported by State practice, including in international environmental instruments and before human rights bodies.*⁴⁰

The special rapporteur therefore urged States to accept the Principles as reflecting actual or emerging international human rights law.

He also urged the Council to consider supporting the recognition by the UN of the human right to a healthy environment. Noting that the great majority of countries in the world had already incorporated the right into law, he stated that:

*recognition of the right has proved to have real advantages. It has raised the profile and importance of environmental protection and provided a basis for the enactment of stronger environmental laws. When applied by the judiciary, it has helped to provide a safety net to protect against gaps in statutory laws and created opportunities for better access to justice.*⁴¹

He also noted that because of the clarification of the environmental aspects of human rights law, as reflected in the Framework Principles,

the 'human right to a healthy environment' is not an empty vessel waiting to be filled; on the contrary, its content has already been clarified, through recognition by human rights authorities that a safe, clean, healthy and sustainable environment is necessary for the full

*enjoyment of the human rights to life, health, food, water, housing and so forth.*⁴²

In response to the report, the Council did not formally endorse the principles or the call for recognition of the right. However, it did adopt a resolution by consensus that took note with appreciation of the report presenting the Principles, renewed the mandate for another three years and requested the new mandate-holder to report annually not just to the Human Rights Council, as in the past, but also to the General Assembly.⁴³

4 | HAS THE TIME COME FOR THE UNITED NATIONS TO RECOGNIZE THE RIGHT TO A HEALTHY ENVIRONMENT?

The first report of the UN special rapporteur on human rights and the environment to the UN General Assembly repeats the call for the UN to recognize the right to a healthy environment.⁴⁴ The report describes three possible vehicles for such recognition: (i) the General Assembly could recognize the right through a resolution, as it recognized the rights to water and sanitation in 2010; (ii) the parties to one of the global human rights treaties, such as the International Covenant on Economic, Social and Cultural Rights, could adopt a protocol incorporating the right; and (iii) the UN could adopt a new treaty including the right, such as the Global Pact.⁴⁵ The report notes the decision by the General Assembly to establish an ad hoc open-ended working group to discuss possible options to address gaps in international environmental law and environment-related instruments, and states that any instrument resulting from this process 'certainly could and should include recognition of the human right to a healthy environment'.⁴⁶

This section first describes the possible advantages of recognition of the human right to a healthy environment, as detailed in the report of the special rapporteur, and then discusses the potential role of the Global Pact in particular.

4.1 | Possible benefits of recognition of the human right to a healthy environment

The report to the General Assembly outlines several benefits of global recognition of the human right to a healthy environment.

⁴²ibid para 15.

⁴³HRC 'Human Rights and the Environment' UN Doc A/HRC/RES/37/8 (9 April 2018) paras 3 and 7(j). At its next session, the Council appointed a new special rapporteur, Professor David Boyd of the University of British Columbia, to carry out the mandate.

⁴⁴UNGA 'Human Rights Obligations Relating to the Enjoyment of a Safe, Clean, Healthy and Sustainable Environment' UN Doc A/73/188 (19 July 2018). This report had to be submitted for publication in July 2018 by the outgoing special rapporteur in order to be presented to the General Assembly in the fall by the new rapporteur, who took up the mandate on 1 August. As a result, the report was jointly prepared by the outgoing and incoming rapporteurs. See ibid para 11.

⁴⁵ibid paras 46–48.

⁴⁶ibid para 46.

³⁸ibid Principle 3, paras 7–9.

³⁹ibid Principles 14 and 15, paras 40–53.

⁴⁰ibid paras 8 and 9. See, e.g., HRC 'Human Rights and the Environment' UN Doc A/HRC/RES/34/20 (6 April 2017) (calling on States to implement many specific human rights obligations in relation to the environment).

⁴¹Framework Principles (n 31) para 13.

First, recognition

would raise awareness of and reinforce the understanding that human rights norms require protection of the environment and that environmental protection depends on the exercise of human rights. It would highlight that environmental protection must be assigned the same level of importance as other interests that are fundamental to human dignity, equality and freedom.⁴⁷

Second, it would crystallize and integrate the human rights norms relating to the environment, helping to ensure that they 'continue to develop in a coherent, consistent and integrated manner'.⁴⁸ Usually human rights law first recognizes a right in a declaration or treaty, then elaborates its corresponding duties over time through implementation and interpretation by States and monitoring bodies. In this case, the duties have already been elaborated even without a globally recognized right. The absence of a universally acknowledged right has not prevented the evolution of environmental human rights law, as the previous section explains, but the presence of the right would provide a kind of capstone to that body of law, giving it a more unified and integrated presence. In the words of Marcos Orellana, '[t]he normative content of human rights in respect of the environment would thus no longer be dispersed or fragmented across a range of rights, but would come together under a single normative frame'.⁴⁹

Third, the report points out that levels of environmental protection are too often viewed in the aggregate, with insufficient attention paid to the disproportionate effects of environmental harm on those who are most vulnerable or already marginalized. Recognition of the human right to a healthy environment would help to place greater attention on those who are most at risk from environmental degradation, including women, children, persons living in poverty, members of indigenous peoples and traditional communities, older persons, persons with disabilities, minorities and displaced persons.⁵⁰

Fourth, the report points to the experience with the right at the national level, where it has 'raised the profile and importance of environmental protection and provided a basis for the enactment of stronger environmental laws, standards, regulations and policies'.⁵¹ In particular, the procedural components of the right (including access to information, participation and effective remedies) have empowered individuals and communities to advocate for and secure better environmental protection.⁵² The report states that '[t]he ultimate test in evaluating the right to a healthy environment is whether it contributes to healthier people and healthier ecosystems'.⁵³ It cites empirical studies that have concluded, among other things, that:

*[i] nations with the right to a healthy environment in their constitutions have smaller ecological footprints, rank higher on comprehensive indices of environmental indicators, are more likely to ratify international environmental agreements and have made faster progress in reducing emissions of sulphur dioxide, nitrogen oxides and greenhouse gases than nations without such provisions ... [ii] constitutional environmental rights have a positive causal influence on environmental performance ... [and iii] constitutional environmental rights are positively related to increases in the proportion of populations with access to safe drinking water.*⁵⁴

The General Assembly has historically been careful not to proclaim new human rights without careful review. In 1986, it adopted guidelines for recognition of new human rights instruments, indicating that they should:

- (i) *Be consistent with the existing body of international human rights law;*
- (ii) *Be of fundamental character and derive from the inherent dignity and worth of the human person;*
- (iii) *Be sufficiently precise to give rise to identifiable and practical rights and obligations;*
- (iv) *Provide, where appropriate, realistic and effective implementation machinery, including reporting systems; [and]*
- (v) *Attract broad international support.*⁵⁵

Marcos Orellana has persuasively argued that the right to a healthy environment satisfies these requirements. He notes that the connection between the environment and human dignity has been recognized by the UN at least since the 1972 Stockholm Declaration, and the application of human rights law to environmental issues (as described in the previous section) demonstrates that the right is consistent with the existing body of human rights law and 'sufficiently precise to give rise to identifiable and practical rights and obligations'. As explained in Section 2, 'broad international support' is shown by the fact that the great majority of UN member States have already recognized the right in national law, regional agreements or both. With respect to implementation, Orellana notes that the question of whether existing machinery is effective 'remains open for virtually all human rights'.⁵⁶ However, implementation of the human right to a healthy environment at the national level is already taking place in many countries, and international mechanisms such as the Universal Periodic Review,⁵⁷ human rights treaty bodies, regional tribu-

⁴⁷ibid para 39.

⁴⁸ibid.

⁴⁹M Orellana, 'Quality Control of the Right to a Healthy Environment' in Knox and Pejan (n 7) 169, 176.

⁵⁰UNGA (n 44) para 45.

⁵¹ibid para 40.

⁵²ibid paras 41 and 42.

⁵³ibid para 44.

⁵⁴ibid.

⁵⁵UNGA 'Setting International Standards in the Field of Human Rights' UN Doc A/RES/41/120 (4 December 1986) para 4. See also P Alston, 'Conjuring Up New Human Rights: A Proposal for Quality Control' (1984) 78 American Journal of International Law 607.

⁵⁶Orellana (n 49) 177.

⁵⁷Through the Universal Periodic Review procedure, the Human Rights Council examines the human rights record of each UN member State. The Council reviews approximately 40 States each year, allowing for a complete cycle through the membership every four to five years.

nals and special mandate-holders for the Human Rights Council are already examining environmental issues within their mandates.⁵⁸

4.2 | Human rights and the environment in the Global Pact

The benefits of global recognition of the human right to a healthy environment that are described above do not depend on its inclusion in a binding treaty. Indeed, seeking recognition in a resolution of the General Assembly has some important advantages over pursuing a treaty. A resolution would almost certainly take less time, since it would be viewed by States as less legally significant and therefore more politically palatable. For the same reasons, it might capture a broader array of State support.⁵⁹ Any attempt to amend the International Covenant on Economic, Social and Cultural Rights, or include an additional protocol, to include an explicit environmental right could take years for approval, and many more years for acceptance by nearly all of the members of the UN.

However, including the right in a treaty such as the Global Pact does have certain advantages over a resolution. The most obvious, of course, is that the treaty would have a binding effect on its parties. More specifically, including the human right to a healthy environment in an 'environmental' treaty could strengthen the growing ties between human rights norms and environmental principles.⁶⁰

Many of the provisions of the Global Pact echo well-known environmental principles included in the Rio Declaration. For example, the reference to precaution in Article 6 follows the language of Rio Principle 15; Articles 9–11 on rights of access to information, participation and remedy expand on the language of Rio Principle 10; the reference to environmental impact assessment in Article 5 is similar to Rio Principle 17; Article 15, calling for the adoption of effective enforcement laws, resembles Rio Principle 11; and Article 18, like Rio Principle 7, urges international cooperation.

All of these norms also have links to human rights law. As noted above, the rights of information, participation and remedy have been applied by human rights bodies in environmental cases, and they are included in the Framework Principles on Human Rights and the Environment described in the previous section. Another Framework Principle requires environmental and social impact assessment; others require States to adopt and enforce effective environmental laws; yet another addresses international cooperation.⁶¹ And human

rights bodies have cited the precautionary principle as one of the factors they weigh in assessing whether States have satisfied human rights norms in their substantive environmental standards.⁶²

However, with the exception of the rights of information, participation and remedy in Articles 9–11, the Global Pact does not express its norms as following from or implicating rights of individuals. Including the human right to a healthy environment as the first article of the Pact would help to place the remaining provisions in that context. Doing so would make it easier to read the Pact not simply as an international environmental agreement, but also as an agreement drawing on and incorporating human rights norms. Indeed, all of its provisions could be considered as aspects of, or at least related to, the fundamental human right to a healthy environment. Although precedence does not always imply priority, the first article of the Pact does seem to be the most important, because it would establish the lens through which the remainder of the Pact would be seen. As a result, the article could help to elevate the other provisions into statements not just of preference and obligation, but of right, and of right not just of States *vis-à-vis* one another, but of rights held by human beings against States.

Infusing international environmental norms with human rights in this way would help to re-orient international environmental law from its traditional State-centric focus, according to which its obligations are owed only by States to other States. Human rights norms make clear that States owe obligations not only to one another, but also, and more importantly, to individuals, who therefore should have access to compliance mechanisms to ensure that the obligations are being met. A human rights approach therefore helps to support stronger compliance mechanisms open to the public, as well as calls for new agreements on procedural access rights, such as the Aarhus Convention and the Escazú Agreement, and even for a global Principle 10 agreement. Relatedly, a human rights approach can help to re-orient international environmental law from its traditional focus on transboundary harm. Recognition that environmental harm implicates human rights even if the harm does not cross an international border opens the door to consideration of sustainable development in terms of binding human rights obligations, not just non-binding political declarations.

At the same time, experience with human rights norms warns against trying to set out so-called 'human duties' in international instruments, as Article 2 of the Pact does. There is a long history in human rights law of efforts to define duties on individuals. Although reviewing that history is beyond the scope of this article, it is clear that while such efforts may seem to contribute to a sense of common effort at best, and appear anodyne at worse, in practice they have often been Trojan horses designed to provide excuses for States to justify failing to comply with their own obligations.⁶³ The Global Pact, or any other agreement that emerges from the UN

⁵⁸ibid 177–178. See also C Rodríguez-Garavito, 'A Human Right to a Healthy Environment? Moral, Legal, and Empirical Considerations' in Knox and Pejan (n 7) 155 (arguing that a strong case can be made that the right to a healthy environment is already a human right, but that it should still be adopted in an international legal instrument).

⁵⁹See, e.g., UNGA 'The Human Right to Water and Sanitation' UN Doc A/RES/64/292 (3 August 2010) (adopted by a vote of 122 in favour, none against and 41 abstentions).

⁶⁰As noted above, the Global Pact refers to 'the right [of each person] to live in an ecologically sound environment adequate for their health, well-being, dignity, culture and fulfillment', language that could more easily call on the environmental human rights jurisprudence described in the previous section than a shorter reference to a 'right to a healthy environment'. Another possibility suggested by the special rapporteur is 'the right to a safe, clean, healthy and sustainable environment'. For ease of reference, however, this article will continue to refer simply to 'the right to a healthy environment'.

⁶¹See Framework Principles (n 31) Principles 8, 11, 12 and 13.

⁶²See ibid Commentary, para 33(c).

⁶³See J Knox, 'Horizontal Human Rights Law' (2008) 108 American Journal of International Law 1.

working group, would do well to incorporate human rights, but it should eschew trying to define human duties.

5 | CONCLUSION

The infusion of human rights norms into international environmental law can help to re-energize the field, by making clear that environmental protection is vital to human wellbeing, dignity, equality and freedom; by supplying standards, including for rights to information, public participation and access to justice, that are vital to inclusive and robust environmental policymaking; and by opening new avenues for individuals and communities to seek effective remedies for environmental harm. By recognizing the human right to a healthy environment, the Global Pact for the Environment has the potential to contribute to a rights-based approach to environmental protection. At a minimum, even if the Pact is not adopted, it is another important sign of the increasing attention to the relationship of human rights and environmental norms.

At the same time, it is important to underline that this rapidly developing relationship does not depend on the Global Pact for the Environment. Regardless of the fate of the Global Pact, the evolution of environmental human rights law will continue.

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How to cite this article: Knox JH. The Global Pact for the Environment: At the crossroads of human rights and the environment. *RECIEL*. 2019;28:40–47. <https://doi.org/10.1111/reel.12287>